

APVO Kit – Part 1

Applying to the Local Court for an Apprehended Personal Violence Order



If there is a threat or danger to you or your property, always call police for assistance

This information is for people who are thinking about starting court proceedings for an Apprehended Personal Violence Order (APVO).

What is an APVO?

An Apprehended **Personal** Violence Order (APVO) is a court order that helps protect someone from another person they're **not** in a domestic relationship with – like a neighbour, colleague, or acquaintance. The order tells the other person (the defendant) what they must not do.

You are **not** eligible to apply for a APVO if:

- You have a domestic relationship with the other party.
- You are under the age of 16

What is a domestic relationship?

Someone you are or have been related to in the past: e.g., husband/wife, partner, boyfriend/girlfriend, housemate, carer, a relative (parent, sibling, cousin). In these circumstances, you will need to go to the police station.

Not sure? Ask the court registry staff for help - they can help if this applies to you.

Alternatives to Court

Before applying, you need to decide if this is the right option for you and consider:

- Court proceedings can take time and money.
- Talking to the other person (if safe to do so)
- Sending a respectful letter, being clear about the issue and what you want done.

Legal advice and support

Staff at the court cannot give legal advice. If you need to seek independent legal advice, you may wish to contact one of the following services:

- **LawAccess NSW (Legal Aid NSW)**
Telephone: 1300 888 529 Website: legalaid.nsw.gov.au
- **NSW Community Legal Centres** - Find your nearest centre at: clcnsw.org.au
- **Legal Aid NSW – Apprehended Violence Orders (AVOs)**
Information about AVOs and legal help eligibility is available at:
legalaid.nsw.gov.au (search “Apprehended Violence Orders”)
- **Law Society of NSW – Find a Lawyer**
Find a private lawyer by area of law or location: lawsociety.com.au/register-of-solicitors

The Court Process

The Application

You are the applicant (the person asking for the order). You are also the protected person (the person the order is seeking to protect).

You must complete the application form and provide:

- The **defendant's** full name (the person for whom you are seeking an order be made).
- An address where the defendant can be served with the application.
- You can ask for the order to protect other people, but only if:
 - You have a domestic relationship with them including living at the same address or
 - You are their guardian.
- Your application must explain the reasons why you are seeking protection; this is called the grounds of application.
- Include specific details of what happened. You must be specific with dates, times, places and exact words or events.
- Request the orders you are seeking and for how long.

A registrar will consider your application. They may refuse it if they consider:

- it is frivolous, vexatious, without substance or has no reasonable prospect of success; or
- could be dealt with more appropriately by mediation or other alternative dispute resolution.

If refused, you will be provided with the reasons in writing. You can make an application asking for a judicial officer to review the registrar's decision.

If accepted, you will receive a copy of the court application which will contain the date you need to attend court. You must attend court on that date, if you don't, your application can be dismissed.

Important: It is against the law to make a false or misleading statement in your application.

Serving the Defendant

Police will serve the defendant with a copy of your application. It will say: who made the application, the reasons for making the application (the grounds), what orders you want and the date, time and place for all parties to attend court.

Going to Court

- You must go to court on the date given and any further day that the case may be adjourned to.
- You can represent yourself or you may wish to arrange a lawyer to represent you.
- If the defendant has not been able to be served, the case may be adjourned to another date to allow the defendant to be served with the application.
- If the defendant is served and attends court, they will tell the court if they agree or disagree. If they disagree, the court may adjourn the case for a hearing.
- The court may refer your case for mediation unless there is a good reason not to.

If there is a hearing:

- The court may order all parties to prepare written statements to support their case.

- Written witness statements are the evidence used in court, unless the other party seeks to question the witness about their statement. If so, witnesses are then required to attend court on the hearing date
- You can ask for a temporary order (called an **interim order**) for your protection until the next court date.

Court Rules

Local Court Practice Note – Domestic and Personal Violence Proceedings explains that APVO cases normally use written statements instead of oral evidence, with strict deadlines for filing by both parties. Missing these deadlines can result in the case being dismissed or a final order being made without the defendant's reply.

Court Orders

The court will decide, what orders to make and how long the order will be in place for. The court may make different orders than you have asked for.

Paying Costs

If the court does not make an order, you may have to pay the other person's legal costs. This can be a considerable amount if the other party was represented by a lawyer.

Enforcing the Order

NSW Police will receive a copy of any order made by the court. If an incident occurs which could be a breach of the order, you should report it to the Police. Breaking an APVO is a criminal offence, no matter which state or territory of Australia you are in.

What Next?

If you decide that you want to apply for an APVO (and you are over 16 years of age and do not have a domestic relationship with the defendant):

Complete the application for an Apprehended Personal Violence Order

- Make sure you include your phone number and email address.
- Take the signed application form to the Local Court.
- Await notification from the Registrar regarding your application.



If there is a threat or danger to you or your property, always call police for assistance

Disclaimer: This information sheet has been prepared for general information purposes only and does not constitute legal advice. While the information in this document has been prepared with all due care, you should seek independent legal advice relevant to your circumstances

Application for Apprehended Personal Violence Order

(Complete and submit all three pages of this form)

I wish to apply to the Local Court for an apprehended personal violence order pursuant to section 48, Crimes (Domestic and Personal Violence) Act 2007.

NOTE: A registrar can refuse your application if it is considered frivolous, vexatious, or has no reasonable prospect of the court making an order, or that the dispute could be better dealt with by mediation or another alternative method.

Name	
Phone number	
Address	
Email	
Tick here if you do not want your address disclosed to the defendant. ☐ Address not to be disclosed.	
Date of birth	
Gender (tick)	☐ Male ☐ Female
Are you of Aboriginal or Torres Strait Islander origin?	☐ No ☐ Yes, Aboriginal ☐ Yes, Torres Strait Islander

I am applying for an order for (tick one):

☐ My own protection only, or

☐ My own protection plus protection of the following person(s):

Name	
Address	
Date of birth (or age)	
Gender (tick)	☐ Male ☐ Female

Name	
Address	
Date of birth (or age)	
Gender (tick)	☐ Male ☐ Female

The person that I seek to apply for an order against (called the DEFENDANT) is:

Name	
Address	
Date of birth (or age)	
Gender (tick)	☐ Male ☐ Female

I request that the order be made for a period of [tick one box]:

☐ 6 months ☐ 12 months ☐ Other period (specify) _____

I have read the application kit and have considered alternatives to court. I understand that:

- It is an offence to make a false or misleading statement for the purpose of making an application for an apprehended personal violence order
- An application notice will be prepared by the registrar which will include the reason(s) for application and orders sought that I have provided (on page 2 and 3 in this kit)
- The application notice prepared by the registrar will be served by police on the defendant
- A copy of the application notice will be sent to me
- I must attend court on the date the application notice is listed
- The court can order that I pay costs if my application is unsuccessful.

Signature of applicant	Date

Reasons for application

Applicants Name:

These are the reasons that I rely upon for applying to an apprehended personal violence order:

1.	I have known the defendant for: (Example: 6 months)	
2.	The nature of our relationship is: (Example: neighbours)	
3.	Details of most recent incident relating to this application: (Include dates if known. Be specific about the words used or the defendant's behaviour that relates to this application)	
4.	Details of prior history of incident(s) relating to this application: (Include dates if known. Be specific about the words used or the defendant's behaviour that relates to this application)	

NOTE: Your reasons for application should not exceed the space provided on this page. Do not attach copies of documents, emails, text messages, photographs or other evidence to your application. Contact the court to discuss your application if you cannot record the details of your application in the space provided.

Further information about the relationship between the applicant and the defendant

Please provide your answers to the following questions:

Tick box to answer each question

1	Is there an existing commercial relationship between you and the defendant?	☐ Yes	☐ No
	If your answer to question 1 is yes, provide details:		
2	Do you owe the defendant any money?	☐ Yes	☐ No
	If your answer to question 2 is yes, provide details:		
3	Do you owe any other financial debt to the defendant?	☐ Yes	☐ No
	If your answer to question 3 is yes, provide details:		
4	Does the defendant owe you any money?	☐ Yes	☐ No
	If your answer to question 4 is yes, provide details:		
5	Does the defendant owe any other financial debt to you?	☐ Yes	☐ No
	If your answer to question 5 is yes, provide details:		
6	Has there ever been a court case or legal proceedings involving you and the defendant?	☐ Yes	☐ No
	If your answer to question 6 is yes, provide details:		

Orders sought

Standard orders

If the application is successful, the court will make the following orders about behaviour:

1. The defendant must not do any of the following to the protected person(s) or anyone the protected person(s) has a domestic relationship with:
 - a. assault or threaten them, and
 - b. stalk, harass or intimidate them, and
 - c. intentionally or recklessly destroy or damage any property or harm an animal that belongs to or is in the possession of them.

Additional orders

Below are additional orders that you can ask the court to make.

Tick the box next to the order(s) you are seeking and complete any additional information as indicated.

☐	2. The defendant must not approach or contact the protected person(s) in any way, unless contact is through a lawyer.
☐	3. The defendant must not approach: a. the school or any other place the protected person(s) might go to for study, or b. any place the protected person(s) might go to for childcare, or c. any other place listed here:
List other places:	
☐	4. The defendant must not approach or be in the company of the protected person(s) within at least 12 hours after drinking alcohol or taking illicit drugs.
☐	5. The defendant must not try to find the protected person(s), except as ordered by a court.
6. Not applicable (item 6 left blank)	
☐	7. The defendant must not live at: a. the same address as the protected person(s), or b. any place listed here:
List other places:	
☐	8. The defendant must not go into: a. any place where the protected person(s) lives, or b. any place where the protected person(s) works, or c. any place listed here:
List other places:	
☐	9. The defendant must not go within _____ (metres) of: a. any place where the protected person(s) lives, or b. any place where the protected person(s) works, or c. any place listed here:
List other places:	
☐	10. The defendant must not possess any firearms or prohibited weapons.
☐	11. Any other orders requested:



